



CHAPTER 9.

An Act to amend the law regulating the number of puisne judges of the High Court and the attachment of such judges to the several divisions of that Court.

[1st March 1944.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The number of puisne judges of the High Court shall not be less than twenty-five nor more than thirty-two.

(2) Subject as hereinafter provided, whenever the number of the puisne judges of the High Court is less than thirty-two, a new judge may be appointed by His Majesty by Letters Patent :

Provided that, except in the event of the number of such judges being at any time less than twenty-five, His Majesty shall not be advised to make an appointment to fill any vacancy unless the Lord Chancellor with the concurrence of the Treasury is satisfied that the state of business in the High Court requires that the vacancy should be filled.

(3) Every puisne judge of the High Court shall be attached to such Division of that Court as the Lord Chancellor may direct, so, however, that of such judges not less than five shall be attached to the Chancery Division, not less than seventeen shall be attached to the King's Bench Division, and not less than three shall be attached to the Probate, Divorce and Admiralty Division.

(4) A puisne judge of the High Court may with his consent be transferred by direction of the Lord Chancellor from one of the Divisions of that Court to another :

Provided that no direction shall be given for the transfer of a puisne judge from the King's Bench Division, or from the Probate, Divorce and Admiralty Division, without the concurrence of the president of that Division.

15 & 16 Geo. 5. c. 49. (5) For the purpose of giving effect to the foregoing provisions of this section, the provisions of the Supreme Court of Judicature (Consolidation) Act, 1925, specified in the first column of the Schedule to this Act shall be amended in the manner specified in the second column of that Schedule.

(6) Any amount by which the sums payable under the Supreme Court of Judicature (Consolidation) Act, 1925, out of the Consolidated Fund of the United Kingdom and out of moneys provided by Parliament respectively, are increased by reason of the provisions of this Act shall be defrayed out of the said Fund or the growing produce thereof and out of such moneys as aforesaid.

Short title and repeals. 2.—(1) This Act may be cited as the Supreme Court of Judicature (Amendment) Act, 1944.

25 & 26 Geo. 5. c. 2. 1 & 2 Geo. 6. c. 2. 1 & 2 Geo. 6. c. 67. (2) Section one of the Supreme Court of Judicature (Amendment) Act, 1935, the Supreme Court of Judicature (Amendment) Act, 1937, and section three of the Supreme Court of Judicature (Amendment) Act, 1938, are hereby repealed.

SCHEDULE.

Section 1.

AMENDMENTS OF 15 & 16 GEO. 5, Cap. 49.

Section.		Amendment.
Section two		In subsection (1) for the words "and the puisne judges of the several Divisions" there shall be substituted the words "and not less than twenty-five nor more than thirty-two puisne judges of that Court."
Section four		In paragraph (i) of subsection (1) for the words "and (subject to the provisions of this Act) six puisne judges" there shall be substituted the words "and not less than five puisne judges", in paragraph (ii) of that subsection for the words "and (subject to the provisions of this Act) nineteen puisne judges" there shall be substituted the words "and not less than seventeen puisne judges", and in paragraph (iii) of that subsection for the words "and four puisne judges" there shall be substituted the words "and not less than three puisne judges"; and for subsection (2) there shall be substituted the following subsection:— "(2) The puisne judges of the High Court shall be attached to the several Divisions thereof by direction of the Lord Chancellor; and any such judge may with his consent be transferred by a like direction from one of the said Divisions to another: Provided that no direction shall be given for the transfer of a puisne judge from the King's Bench Division or from the Probate, Divorce and Admiralty Division without the concurrence of the president of that Division."
Section five		In subsection (1) for the words "or in the number of the judges of the High Court who may be attached to any Division" there shall be substituted the words "of the High Court or in the number of puisne judges required to be attached to any Division thereof."

Section.

Amendment.

Section eleven ... In subsection (1) for the words from
"Provided that" to the end of the
subsection there shall be substituted the
words:—

"Provided that, except in the event of
the number of puisne judges of the High
Court being at any time less than twenty-
five, His Majesty shall not be advised to
make an appointment to fill any vacancy
unless the Lord Chancellor with the
concurrence of the Treasury is satisfied
that the state of business in that Court
requires that the vacancy should be
filled."

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